

Harare (Public Health)(Amendment) By-laws, 2019 (No. 6)

IT is hereby notified that the Minister of Local Government, Public Works and National Housing has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws made by the Harare City Council:—

Title

1. These by-laws may be cited as the Harare (Public Health) (Amendment) By-laws, 2019 (No. 6).

2. Section 3 of the Harare (Public Health) By-laws, 1962, published in Statutory Instrument 582 of 1962 (hereinafter called the principal by-laws), is amended by the insertion of a new term “authorised person” after the definition of the term “author of a nuisance” and before the definition of the term “Chief Health Inspector” so as to read—

““authorised official” means any person employed or delegated by the council to carry out functions prescribed in these by-laws or any other council by-laws;”.

3. Section 3 of the principal by-laws is amended by the insertion of a new term “permit” after the definition of the term “owner” and before the definition of the term “poultry” so as to read—

““permit” means a permit granted by the Director of Health Services in consultation with the Director of Works authorising the applicant to keep more than the prescribed poultry or a residential premises;”.

4. Amendment of the definition of the term “poultry” by the deletion of “and” and substitution with “;” after “guinea fowls” and before “turkeys” and by the addition of “birds, chickens and quill birds” after “turkeys” so as to read—

““poultry” means ducks, fowls, geese, guinea fowls, turkeys, birds, chickens and quail birds;”.

5. Section 25(2) of the principal by-laws, is amended by the deletion of “10 ft” after “than” and the insertion of “20ft” after “than” and substitution with “three metres” and “six metres” respectively, so as to read—

“(2) No poultry houses shall be placed nearer than three metres from any plot boundary or nearer than six metres from any premises used for human habitation.”.

6. Section 25 of the principal by-laws, is amended by the addition of subsections (5), (6), (7), (8) and (9) which shall read as follows—

“(5) The maximum number of poultry allowed to be kept within a residential set up shall be as follows—

- (i) 25 poultry per household for an area designated as high density suburb (up to 300 m²);
- (ii) 100 poultry per household for an area designated medium density suburb (301m² to 900 m²);
- (iii) 405 poultry per household for an area designated low density suburb (901m² to 2000 m²);
- (iv) 800 poultry per household thereafter:

Provided that should an owner or occupier of any residential premises wish to keep more than the prescribed number of poultry at the premises, he or she shall apply for a permit to the Director of Health Services.

(6) Upon receipt of the application for a permit, the Director of Health Services shall together with the Director of Works, inspect the premises of the applicant.

(7) Subject to the outcome of the inspection, the Director of Health Services may grant or refuse to grant the permit.

(8) The permit shall be valid to a period of one (1) year from the date that it was granted and upon expiry the applicant shall apply for renewal of the permit.

(9)—

- (a) a Health Inspector or any authorised official shall be entitled to enter any premises within the jurisdiction

of the Harare City Council to inspect, monitor and enforce compliance with these by-laws;

- (b) a Health Inspector or any authorised official shall be entitled to confiscate all the excess poultry found on any household;
- (c) the confiscated poultry shall be stored at an area designated by the council for such purposes for a period of seven days to allow the owner to claim the poultry;
- (d) the owner shall be allowed to collect the poultry upon payment of the prescribed penalty and charges which shall be prescribed by the council from time to time to cater for the storage and feeding expenses;
- (e) should the owner of the confiscated poultry fail to claim their poultry within seven days, the council shall dispose of the birds as it deems necessary to defray expenses.

7. Section 28 of the principal by-laws is repealed and substituted with the following—

“28. (1) Any person who—

- (a) contravenes or fails to comply with any of the provisions of these by-laws; or
- (b) knowingly gives false information in an application in terms of section 25(5); or
- (c) alters or falsifies a permit issued in terms of section 25(7); or
- (d) unlawfully attempts to obstruct, hinder or prevent or causes to be obstructed, hindered or prevented, an authorised official in the exercise of his or her duties; or
- (e) unlawfully attempts to remove, removes or causes to be removed the confiscated poultry from a designated area; or

- (f) contravenes any terms or conditions attaching to his or her permit;

shall be guilty of an offence and liable on conviction to a penalty not exceeding level 5 or one year imprisonment or to both such fine and imprisonment.

(2) The Director of Health Services may cancel a permit if the holder is guilty of contravention of the provisions of these by-laws.

(3) A permit cancelled in terms of subsection (2) above shall not be renewed until a period of one year has lapsed from the date of cancellation.

(4) Where a permit is cancelled in terms of subsection (3) above the holder shall return the permit within 48 hours of being given notice of such cancellation.

(5) Any person who fails to comply with the provisions of subsection (4) above shall be guilty of an offence and liable to a fine not exceeding level 5 or one year imprisonment or to both such fine and such imprisonment.”.